

DRAFT FOR REVIEW

IN THE COURT OF THE CIVIL JUDGE, SENIOR DIVISION, _____ AT _____

Civil Suit No: _____

Rupa,

daughter of Late [Father's Name],

Age: [Plaintiff's Age],

Occupation: [Plaintiff's Occupation],

Residing at: [Plaintiff's Address], Pune.

.....Plaintiff

vs

[Mother's Name],

wife of Late [Father's Name],

Age: [Defendant's Age],

Occupation: [Defendant's Occupation],

Residing at: [Defendant's Address], Pune.

.....Defendant

A SUIT FOR PARTITION, DECLARATION, AND PERMANENT AND TEMPORARY INJUNCTION

The Plaintiff abovenamed submits this Plaint, praying to state as follows:

1. That the Plaintiff is the adopted daughter of Late [Father's Name] and the Defendant, [Mother's Name]. The said [Father's Name] passed away intestate approximately five years ago, leaving behind the Plaintiff and the Defendant as his sole Class I legal heirs under the Hindu Succession Act, 1956. The Plaintiff has no siblings.
2. That at the time of his demise, the deceased [Father's Name] was seized and possessed of certain self-acquired properties, including two residential flats situated in Pune. These properties, hereinafter referred to as the "Suit Properties", are more particularly described in the Schedule of Properties annexed hereto and marked as Schedule 'A'.
3. That upon the intestate death of the said [Father's Name], his entire estate, including the Suit Properties, devolved upon his Class I legal heirs. As per the provisions of Section 8 and Section 10 of the Hindu Succession Act, 1956, the Plaintiff (daughter) and the Defendant (widow) are each entitled to an equal, undivided one-half (1/2) share in the Suit Properties.
4. That since the demise of her father, the Plaintiff's name has not been mutated in the relevant property records concerning the Suit Properties. The Defendant, being the Plaintiff's mother, has been managing the affairs related to the said properties.
5. That recently, the Defendant's conduct towards the Plaintiff has become hostile and adverse to the Plaintiff's legal rights. The Defendant is attempting to dispossess the Plaintiff and has explicitly communicated her intentio

n to unlawfully sell, transfer, or otherwise alienate the entirety of the Suit Properties to her cousin, with the mala fide intent of depriving the Plaintiff of her rightful and legitimate share.

6. That upon learning of the Defendant's illegal intentions, the Plaintiff approached the Defendant on or about [Date] and requested an amicable partition of the Suit Properties and the demarcation of her one-half share. However, the Defendant categorically refused to partition the properties and threatened to proceed with the alienation to third parties.

7. That the cause of action for the present suit first arose on [Date], when the Defendant refused the Plaintiff's legitimate demand for partition, and the same is continuing from day to day. The suit is filed within the period of limitation as prescribed under the Limitation Act, 1963.

8. That the Suit Properties are situated in Pune, which is within the territorial jurisdiction of this Hon'ble Court. Therefore, this Hon'ble Court has the jurisdiction to try, entertain, and decide the present suit.

9. That for the purposes of court fees and jurisdiction, the suit for partition and declaration is valued at Rs. [Valuation of Plaintiff's 1/2 Share], and the requisite court fee as per the Maharashtra Court Fees Act, 1959, is paid herewith. The Plaintiff undertakes to pay any deficit court fee if and when directed by this Hon'ble Court.

10. That the Plaintiff has a strong prima facie case, and the balance of convenience is overwhelmingly in her favour. If the Defendant is not restrained by an order of temporary injunction from selling, transferring, alienating, or creating any third-party rights in the Suit Properties during the pendency of this suit, it will lead to a multiplicity of proceedings and cause irreparable loss and injury to the Plaintiff, which cannot be compensated in monetary terms. It is therefore just and necessary to grant a temporary injunction under Order XXXIX Rules 1 and 2 of the Code of Civil Procedure, 1908.

11. The Plaintiff reiterates that she is the legally adopted daughter of the late [Father's Name] and the Defendant, [Mother's Name]. The said [Father's Name] passed away intestate about five years prior to the filing of this suit, leaving behind the Plaintiff and the Defendant as his only surviving legal heirs.

12. The deceased was the absolute owner of two self-acquired residential flats located in Pune, which are the subject matter of the present suit and are more particularly described in Schedule 'A' hereto (the "Suit Properties"). Upon his death, the said properties devolved upon his legal heirs by way of intestate succession.

13. As the adopted daughter, the Plaintiff holds the same legal status as a biological daughter and is a Class I heir under the Hindu Succession Act, 1956. Consequently, the Plaintiff and the Defendant each inherited an equal, undivided one-half (1/2) share in the entire estate of the deceased, including the Suit Properties.

14. The Plaintiff submits that despite her clear and indefeasible right, her name has not been entered into the official property records. Taking undue advantage of this situation and her position as the mother, the Defendant has recently adopted a hostile stance. The Defendant is actively attempting to dispossess the Plaintiff and has unequivocally declared her intention to sell or transfer the entirety of the Suit Properties to her cousin, thereby extinguishing the Plaintiff's legitimate share and rights.

15. The Plaintiff made sincere efforts to resolve the matter amicably and demanded a peaceful partition of the Suit Properties. However, on or about [Date], the Defendant flatly refused to effect any partition and reiterated her threat to alienate the properties, leaving the Plaintiff with no other remedy than to approach this Hon'ble Court.

16. This suit is filed seeking partition and separate possession of the Plaintiff's share in the Suit Properties, a declaration of her title to the extent of her share, and consequential reliefs of permanent and temporary injunctions. The suit is maintainable under the provisions of the Hindu Succession Act, 1956, and the Code of Civil Procedure, 1908.

17. It is submitted that under Section 8 of the Hindu Succession Act, 1956, the property of a Hindu male dying intestate devolves upon the heirs specified in Class I of the Schedule. The Plaintiff, being the daughter, and the Defendant, being the widow, are both Class I heirs. As per the rules of distribution laid down in Section 10 of the said Act, the widow and the daughter take one share each. Therefore, the Plaintiff is legally entitled to a one-half (1/2) share in the Suit Properties.

18. The Plaintiff seeks a declaration from this Hon'ble Court to the effect that she is the lawful owner of an undivided one-half (1/2) share in the Suit Properties as described in Schedule 'A'. Following such declaration, the Plaintiff is entitled to have her share partitioned by metes and bounds and to be put in separate possession thereof.

19. The Plaintiff has an urgent and immediate need for a temporary injunction under Order XXXIX Rules 1 and 2 of the Code of Civil Procedure, 1908. The Defendant's explicit threat to alienate the Suit Properties demonstrates that the properties are in danger of being wrongfully sold and wasted, which would defeat the very purpose of this suit and lead to a multiplicity of legal proceedings involving third parties. The Plaintiff has a strong prima facie case, the balance of convenience lies in her favour, and she will suffer irreparable harm if the injunction is not granted.

20. The Plaintiff is also entitled to a decree of permanent injunction restraining the Defendant, her agents, servants, or any person claiming through her from selling, transferring, alienating, mortgaging, or creating any third-party rights, title, or interest in the Suit Properties in any manner whatsoever, to protect the Plaintiff's rights permanently.

Prayer

The Plaintiff, therefore, prays that this Hon'ble Court be pleased to:

- (a) Pass a decree declaring that the Plaintiff is the lawful owner of and is entitled to an equal, undivided one-half (1/2) share in the Suit Properties, more particularly described in Schedule 'A' annexed hereto;
- (b) Pass a preliminary decree for partition of the Suit Properties by metes and bounds and separate the Plaintiff's one-half (1/2) share;
- (c) Pass a final decree for partition and put the Plaintiff in separate, peaceful, and vacant possession of her one-half (1/2) share in the Suit Properties;
- (d) Pass an order of temporary injunction under Order XXXIX Rules 1 and 2 of the Code of Civil Procedure, 1908, restraining the Defendant, her agents, servants, assigns, or any person claiming through her, from selling, transferring, alienating, mortgaging, encumbering, or creating any third-party rights, title, or interest in the Suit Properties during the pendency and final disposal of this suit;
- (e) Pass a decree of permanent injunction restraining the Defendant, her agents, servants, assigns, or any person claiming through her, from selling, transferring, alienating, mortgaging, encumbering, or creating any third-party rights, title, or interest in the Suit Properties in any manner whatsoever;
- (f) Award the costs of this suit to the Plaintiff from the Defendant;
- (g) Grant any other and further reliefs as this Hon'ble Court may deem fit and proper in the interest of justice and

d equity.

Place: Pune

Date:

Sd/-

(ADVOCATE FOR PLAINTIFF)

Sd/-

(PLAINTIFF)

Verification

I, Rupa, daughter of Late [Father's Name], the Plaintiff abovenamed, do hereby state on solemn affirmation that the contents of the foregoing Plaint in paragraphs 1 to 20 are true and correct to the best of my knowledge, information, and belief, and I have signed the same at Pune on this ____ day of _____, 2024.

Sd/-

(PLAINTIFF)

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